

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1941

By: Woolley

AS INTRODUCED

An Act relating to school superintendent elections; prescribing day and year of general elections for school superintendents; prescribing day and year of primaries for school superintendents; specifying ballot procedures for certain number of candidates; requiring a candidate to be elected based on primary results under certain circumstances; providing filing procedures, requirements, and locations for declarations of candidacy; establishing candidacy eligibility requirements; providing voting registration requirements; requiring local boards of education to deliver resolution regarding school superintendent vacancies; specifying resolution content; prescribing resolution filing periods; requiring local boards of education to publish notice and news release of certain elections; construing publication and news release requirements; clarifying how boards can fulfill the resolutions and notices requirements; establishing term for school superintendent vacancies; providing notification, declaration, and election processes for vacancies; allowing appointment by the local board for certain unfilled vacancies; requiring public comment period before filling certain vacancies; providing term for certain appointed vacancies; amending 70 O.S. 2021, Section 5-106, which relates to the governing body of a school district; changing reference from appointed superintendents to elected superintendents; eliminating reference to board-directed duties; clarifying duties of elected superintendents; eliminating provisions related to contractual agreements; providing compensation requirements for elected superintendents; allowing two or more school districts to vote for a shared agreement for certain superintendents; allowing local boards to discontinue

1 shared agreements under certain circumstances;
2 establishing notification and procedural requirements
3 for discontinuance; amending 70 O.S. 2021, Section 5-
4 106A, which relates to employment contracts of
5 multiple school districts; eliminating references to
6 superintendents; prohibiting certain employees or
7 relatives from being eligible to run for school
8 superintendent; providing exemptions to eligibility
9 prohibitions; amending 70 O.S. 2021, Section 5-117,
10 which relates to local boards of education powers and
11 duties; clarifying references; eliminating references
12 to contractual superintendents; requiring elected
13 superintendents to be recognized as certified
14 administrators for their term of office; providing
15 for codification; providing an effective date; and
16 declaring an emergency.

17 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

18 SECTION 1. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 13A-103.1 of Title 26, unless
20 there is created a duplication in numbering, reads as follows:

21 A. The general election of the superintendent of schools of
22 every school district shall be conducted on the first Tuesday after
23 the first Monday of November in each even-numbered year beginning in
24 2028.

B. The primary election of the superintendent of schools of
every school district, if necessary, shall be conducted on the
fourth Tuesday of August in each even-numbered year beginning in
2028.

1 C. If only two candidates qualify to have their names appear on
2 the ballot, the names of both candidates shall appear on the ballot
3 at the superintendent of schools general election.

4 D. If more than two candidates qualify to have their names
5 appear on the ballot, the names of all such candidates shall appear
6 on the ballot at the superintendent of schools primary election. A
7 candidate receiving more than fifty percent (50%) of the votes cast
8 in the superintendent of schools primary election shall be elected
9 to the office. If no candidate receives more than fifty percent
10 (50%) of the votes cast in the superintendent of schools primary
11 election, then the two candidates with the highest number of votes
12 shall appear on the ballot at the superintendent of schools general
13 election.

14 SECTION 2. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 13A-105.1 of Title 26, unless
16 there is created a duplication in numbering, reads as follows:

17 A. Candidates for superintendent of schools of every school
18 district shall file declarations of candidacy in the same place and
19 with the same officials as candidates for county office. The
20 declaration of candidacy to be signed by the candidate shall have an
21 attachment to be signed by the candidate listing the requirements of
22 a candidate for election or reelection to as superintendent of
23 schools for the district, pursuant to Sections 3 and 8 of this act
24 and Section 5-105a of Title 26 of the Oklahoma Statutes, or any

1 succeeding statute, and the candidate shall swear or affirm that he
2 or she is eligible to run for the office or serve in the office if
3 elected. Candidates may file on the first Monday in December and
4 shall file no later than the following Wednesday.

5 B. Candidates for a superintendent of schools office in a
6 special election shall file on a Monday and shall file no later than
7 the following Wednesday that is at least ten (10) days after the
8 seat has been declared vacant. For school districts located in more
9 than one county, filing may be either in the county wherein
10 supervision of the district is located or in the county where the
11 candidate resides. For school districts that agree to jointly elect
12 a single superintendent to serve them as a group, pursuant to
13 Section 5-106 of Title 70 or any succeeding statute, located in more
14 than one county, filing shall be in the county where the candidate
15 resides; provided the candidates resident address is within one of
16 the participating districts.

17 SECTION 3. NEW LAW A new section of law to be codified
18 in the Oklahoma Statutes as Section 13A-106.1 of Title 26, unless
19 there is created a duplication in numbering, reads as follows:

20 A. To be eligible to be a candidate for superintendent of
21 schools of a school district, a person shall have resided in that
22 district for at least six (6) months preceding the first day of the
23 filing period, pursuant to Section 2 of this act or any succeeding
24 statute, and have been a registered voter registered with the county

1 election board at an address located within the geographical
2 boundaries of the district for six (6) months preceding the first
3 day of the filing period.

4 B. To be eligible to vote in a superintendent of schools
5 election, a person shall be registered with the county election
6 board at an address located within the geographical boundaries of
7 the district.

8 C. To be eligible to vote in a superintendent of schools
9 election under a superintendent sharing agreement allowed under
10 Section 5-106 of Title 70 or any succeeding statute, a person shall
11 be registered with the county election board at an address located
12 within the geographical boundaries of one of the participating
13 districts.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 13A-109.1 of Title 26, unless
16 there is created a duplication in numbering, reads as follows:

17 A. The board of education of every school district shall
18 notify, by resolution, the secretary of the county election board
19 responsible for certifying its election of any regular or special
20 election needed to fill the office of superintendent of schools.

21 B. The resolution calling for an election shall include, but
22 shall not be limited to, the following information:

23 1. Date or dates of the election;
24

1 2. Identification of the office, to be filled, qualifications
2 of candidates for office, and the length of term;

3 3. Information describing the persons eligible to vote in the
4 election; and

5 4. All other information necessary for conducting the election.

6 C. Resolutions calling for regular elections shall be delivered
7 to the secretary of the county election board no fewer than fifteen
8 (15) days preceding the first day of the filing period established
9 in Section 2 of this act or any succeeding statute. The resolution
10 shall contain all questions to be voted upon at the election to be
11 held on the day as required in Section 1 of this act or any
12 succeeding statute.

13 D. Resolutions calling for special elections shall be delivered
14 to the secretary of the county election board no fewer than sixty
15 (60) days preceding the election. A special filing period, if
16 necessary, shall be scheduled for three (3) days and shall begin not
17 more than twenty (20) days following the date the resolution is
18 required to be submitted to the county election board.

19 E. 1. The board of education of every school district shall
20 publish a legal notice for each regular and special election in one
21 issue of a legal newspaper of the county, as defined by Section 106
22 of Title 25 of the Oklahoma Statutes or any succeeding statute, in
23 the county wherein the school district administrative office is
24 located at least ten (10) days prior to the filing period. The

1 board of education of every school district shall also issue a news
2 release of the upcoming filing period and election to a newspaper of
3 general circulation in the county wherein the school district
4 administrative office is located. The legal notice and press
5 release shall include, but shall not be limited to, the dates of the
6 filing period for the election or elections for the office of
7 superintendent of schools. The notice shall also be posted at the
8 school district administrative offices and county election board
9 offices.

10 2. If the notice includes a vacancy declaration on the board of
11 education of a school district as provided for in Section 5 of this
12 act or any succeeding statute, the notice shall also be posted on
13 the school district's website and distributed via email to parents
14 and legal guardians of students enrolled in the district.

15 F. All resolutions and notices required by this section shall
16 be included in the resolutions and notices required in Section 13A-
17 109 of Title 26 of the Oklahoma Statutes or any succeeding statute.
18 The requirements of this section that are fulfilled by such
19 inclusion shall be considered to have been met. The provision in
20 subsection E of this section shall not be considered to have been
21 met unless Section 13A-109 of Title 26 of the Oklahoma Statutes or
22 any succeeding statute is changed to include the same provision.
23
24

1 SECTION 5. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 13A-110.1 of Title 26, unless
3 there is created a duplication in numbering, reads as follows:

4 A. Vacancies for superintendent of schools of every school
5 district shall be filled by an election for the balance of the
6 unexpired term. A district discontinuing a superintendent sharing
7 agreement established by Section 5-106 of Title 70 of the Oklahoma
8 Statutes or any succeeding statute shall not be considered as having
9 a vacancy. The superintendent of schools for such a district shall
10 be elected during the next primary or general superintendent of
11 schools election pursuant to Section 1 of this act or any succeeding
12 statute.

13 B. Except as provided for in subsection D of this section, upon
14 notification of a vacancy for the office of superintendent of
15 schools, the board of education shall make a vacancy declaration at
16 its next regularly scheduled meeting, set the filing dates for
17 declarations of candidacy, and adopt the resolution calling for a
18 regular or special election as provided for in Section 4 of this act
19 or any succeeding statutes. If the vacancy is declared within the
20 first fourteen (14) days of November, the board of education shall
21 use the regular election process provided for in subsection A of
22 Section 1 of this act, or any succeeding statute, to fill the
23 office. If the vacancy is declared at any other time of the year,
24 the board of education shall call for a special election as provided

1 for in subsection C of Section 1 of this act or any succeeding
2 statute and Section 4 of this act or any succeeding statute. The
3 special election shall be called on a date established by subsection
4 B of Section 3-101 of Title 26 of the Oklahoma Statutes or any
5 succeeding statute, and the special filing period shall be scheduled
6 as required in subsection D of Section 4 of this act or any
7 succeeding statute. Persons elected to fill unexpired terms shall
8 begin those terms at the next regular meeting of the board of
9 education following the election.

10 C. If, after the filing period is closed, no candidate for
11 superintendent of schools has filed and therefore a vacancy is
12 created, the vacancy shall be filled by appointment by the board of
13 education; provided, that person appointed by the board meets all
14 the same requirements of a candidate filing to run for election to
15 the office. Prior to holding a meeting to fill a vacancy as
16 required by this subsection, the board of education shall provide a
17 fourteen-day public comment period during which interested parties
18 may submit comments via email or on a form provided on the school
19 district's website. Additionally, prior to the discussion and
20 possible vote to fill a vacancy as required by this subsection, the
21 board of education shall provide for an in-person public comment
22 period, subject to reasonable time limitations. Persons appointed
23 to fill vacancies as provided for in this subsection shall be
24 eligible to serve only for the balance of the term.

1 SECTION 6. AMENDATORY 70 O.S. 2021, Section 5-106, is
2 amended to read as follows:

3 Section 5-106. A. The governing board of each school district
4 in Oklahoma is hereby designated and shall hereafter be known as the
5 board of education of such district. Except as otherwise provided
6 in this section, the superintendent of schools ~~appointed and~~
7 ~~employed by the board~~ elected pursuant to Section 1 of this act or
8 any succeeding statute shall be the executive officer of the board
9 and shall perform all executive duties ~~as the board directs~~ needed
10 to enforce all education-related law in the district under the
11 Constitution of the United States, the Constitution of the State of
12 Oklahoma, the laws and regulations of the United States, the laws
13 and regulations of the State of Oklahoma, and policies of the local
14 board of education.

15 B. ~~The board may contract with a superintendent for a term as~~
16 ~~mutually agreed upon but not to exceed three (3) years beyond the~~
17 ~~fiscal year in which the contract is approved by the board and~~
18 ~~accepted by the superintendent. The contract shall include all~~
19 ~~other terms and conditions as agreed upon in writing by the board~~
20 ~~and the superintendent~~

21 1. The annual compensation including salary for the
22 superintendent of schools, shall be, set on or before every fourth
23 Tuesday of August in each odd number year by the local board of
24 education.

1 2. The compensation for the superintendent of schools
2 established by the local board of education shall neither increase
3 nor decrease more than five percent (5%) in total value, adjusted
4 for inflation, during the biannual setting of compensation for the
5 office of superintendent of schools of the district. The
6 compensation for the superintendent of schools may be reduced in
7 excess of five percent (5%) if the school district experiences a
8 budget shortfall of more than five percent (5%) adjusted for
9 inflation.

10 C. The boards of two or more school districts may ~~contract with~~
11 ~~one superintendent to serve as superintendent of the school~~
12 ~~districts as provided in Section 4 of this act~~ vote at regularly
13 scheduled meetings to enter into a superintendent sharing agreement
14 where a single superintendent of schools shall be elected to serve
15 their districts, pursuant to Section 1 of this act or any succeeding
16 statute. The compensation for the superintendent of schools shall
17 be collaboratively agreed to, set, and approved by each
18 participating board of education on or before every fourth Tuesday
19 of August in each odd-numbered year. A board of education
20 participating in any such agreement may vote to discontinue sharing
21 a single superintendent of schools. A vote to discontinue such an
22 agreement shall take place at least six (6) months before the
23 biannual setting of the compensation of superintendent of schools.
24 The board of education to take such a vote shall notify all other

1 participating boards of education by either certified mail or
2 official electronic mail. The superintendent of schools, for the
3 board of education that discontinues such an agreement, shall be
4 elected during the immediate next regular election pursuant to
5 Section 1 of this act or any succeeding statute. The board of
6 education that discontinues such an agreement shall continue to
7 govern their district with the shared superintendent of schools
8 until the superintendent of schools is sworn into office during the
9 first regular board of education meeting after the superintendent of
10 schools general election.

11 D. No board of a school district having average daily
12 membership (ADM) of fewer than five hundred (500) pupils shall be
13 prohibited from allowing a superintendent to serve simultaneously as
14 a principal.

15 E. The chief executive officer of the board of education of a
16 district in which a public developmental research school is
17 established shall be the director of the school appointed as
18 provided in Section 1210.577 of this title.

19 SECTION 7. AMENDATORY 70 O.S. 2021, Section 5-106A, is
20 amended to read as follows:

21 Section 5-106A. ~~A superintendent,~~ An administrator, teacher, or
22 person providing support services may contract with more than one
23 school district to serve as ~~superintendent,~~ administrator, or
24 teacher, as appropriately qualified, or to provide support services

1 for each contracting district. The contract may be mutual with all
2 the districts as parties, or the contracts may be separate;
3 provided, that ~~a superintendent,~~ an administrator, teacher, or
4 person providing support services may not enter into contracts with
5 more than one school district without the assent and knowledge of
6 all the school districts with which they are contracting. The
7 districts who contract either mutually or separately with ~~a~~
8 ~~superintendent,~~ an administrator, or teacher, or with a person to
9 provide support services may enter into agreements upon such terms
10 and conditions as the parties may agree and may include terms
11 related to the division of payments for items including, but not
12 limited to, payment of benefits or travel for the ~~superintendent,~~
13 administrator, teacher, or person providing support services.
14 Unless otherwise provided by contract, each district shall pay into
15 the Teachers' Retirement System of Oklahoma the district's pro rata
16 share of the payment required to be paid into the System on behalf
17 of the employee.

18 SECTION 8. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 5-113.3 of Title 70, unless
20 there is created a duplication in numbering, reads as follows:

21 A. Except as otherwise provided in this section, no person
22 shall be eligible to be a candidate for or serve as superintendent
23 of schools of a district if the person is currently employed by the
24 school district governed by the board of education of that district

1 or is related within the second degree by affinity or consanguinity
2 to any member of that board of education or to any employee of the
3 school district governed by that board of education. The purpose of
4 this section is both to prohibit persons who are related within the
5 second degree by affinity or consanguinity from serving
6 simultaneously in governing the same school district of this state
7 and to prohibit persons who are related within the second degree of
8 consanguinity or affinity to an employee of a school district from
9 serving as the superintendent of schools governing the school
10 district while such relative is employed, except as otherwise
11 provided in this section.

12 B. The prohibitions set forth in this section shall not apply
13 if:

14 1. The person related to the superintendent of schools within
15 the second degree of affinity or consanguinity is employed as a
16 substitute teacher by the school district, pursuant to the
17 provisions of Section 6-105 of Title 70 of the Oklahoma Statutes or
18 any succeeding statute, or as a temporary substitute support
19 employee if the school district has an Average Daily Membership
20 (ADM) of less than five thousand (5,000); or

21 2. The school district has an Average Daily Membership (ADM) of
22 less than four hundred (400), the board of education has adopted a
23 policy providing for such candidate eligibility, and the
24 superintendent of schools who is related within the second degree by

1 affinity or consanguinity to any employee of the school district
2 governed by the board of education complies with the provisions of
3 subsection E of Section 5-113.1 of Title 70 of the Oklahoma Statutes
4 or any succeeding statute.

5 SECTION 9. AMENDATORY 70 O.S. 2021, Section 5-117, is
6 amended to read as follows:

7 Section 5-117. A. The board of education of each school
8 district shall have power to:

9 1. Elect its own officers; provided that the chair of the board
10 authorized in Section 5-107B of this title, or any succeeding
11 statute, shall be elected by the electors of the school district;

12 2. Make rules, not inconsistent with the law or rules of the
13 State Board of Education, governing the board and the school system
14 of the district, including converting all or part of a traditional
15 public school to a conversion school;

16 3. Maintain and operate a complete public school system of such
17 character as the board of education shall deem best suited to the
18 needs of the school district;

19 4. Designate the schools to be attended by the children of the
20 district;

21 5. Provide and operate, when deemed advisable, cafeterias or
22 other eating accommodations, thrift banks or other facilities for
23 the teaching and practice of thrift and economy, bookstores, print
24 shops, and vocational and other shops;

1 6. Provide informational material concerning school bond
2 elections and millage elections, including but not limited to all
3 pertinent financial information relative to the bond issue, a
4 statement of revenue sources necessary to retire proposed bonds, a
5 statement of current bonded indebtedness of the school district, and
6 a statement of proposed use of funds to be generated by the proposed
7 bond issue. The informational material shall not contain the words
8 "vote yes" or "vote no" or any similar words or statement any place
9 on such informational material;

10 7. Purchase, construct or rent, and operate and maintain,
11 classrooms, libraries, auditoriums, gymnasiums, stadiums, recreation
12 places and playgrounds, teacherages, school bus garages,
13 laboratories, administration buildings, and other schoolhouses and
14 school buildings, and acquire sites and equipment for the operation
15 of public schools or conversion schools;

16 8. a. Insure the school district or its employees against
17 any loss, damage or liability as defined by Sections
18 702 through 708 of Title 36 of the Oklahoma Statutes,
19 or any succeeding statute, or other forms of insurance
20 provided for in Title 36 of the Oklahoma Statutes.

21 b. Subject to the restrictions of liability in the
22 Governmental Tort Claims Act:

23 (1) insure the school district against all or any
24 part of any liability it may incur for death,

injury or disability of any person, or for damage to property, either real or personal,

- (2) insure any employee of the school district against all or any part of the employee's liability for injury or damage resulting from an act or omission in the scope of employment, or
- (3) insure against the expense of defending a claim against the school district or its employee, whether or not liability exists on such claim.

c. As used in this subsection, "employee" means any person who has acted in behalf of a school district, whether that person is acting on a permanent or temporary basis with or without being compensated or on a full-time or part-time basis. Employee also includes all elected or appointed officers, members of governing bodies of a school district, and persons appointed, and other persons designated by a school district to act in its behalf.

d. The cost or premium of any such insurance is a proper expenditure of the school district.

e. Any insurance authorized by law to be purchased, obtained or provided by a school district may be provided by:

- 1 (1) self-insurance, which may be, but is not required
2 to be, funded by appropriations to establish or
3 maintain reserves for self-insurance purposes.
4 Any self-insurance reserve fund shall be
5 nonfiscal and shall not be considered in
6 computing any levy when the school district makes
7 its annual estimate for needed appropriations,
8 (2) insurance in any insurer authorized to transact
9 insurance in this state,
10 (3) insurance secured in accordance with any other
11 method provided by law, or
12 (4) any combination of insurance authorized by this
13 section.

14 f. Two or more school districts or public agencies, by
15 interlocal agreement made pursuant to the Interlocal
16 Cooperation Act, may provide insurance for any purpose
17 by any one or more of the methods specified in this
18 section. The pooling of self-insured reserves, claims
19 or losses among governments as authorized in this
20 section shall not be construed to be transacting
21 insurance nor otherwise subject to the provisions of
22 the laws of this state regulating insurance or
23 insurance companies, except as to the provisions of
24 Section 607.1 of Title 36 of the Oklahoma Statutes, or

1 any succeeding statute. Two or more school districts
2 may also be insured under a master policy or contract
3 of insurance. Premium costs may be set individually
4 for each school district or apportioned among
5 participating school districts as provided by the
6 master policy or contract;

7 9. Acquire property by condemnation proceedings in the same
8 manner as land is condemned for railroad purposes. School district
9 funds may be used to erect buildings on leased land on which other
10 buildings have been erected prior to April 3, 1969, or on land which
11 is leased from a governmental entity;

12 10. Lease real or personal property to the state or any
13 political subdivision thereof or a not-for-profit entity operating
14 pursuant to Section 868 of Title 18 of the Oklahoma Statutes or any
15 succeeding statute for nominal cash consideration for so long as the
16 use of the property by the lessee substantially benefits, in whole
17 or in part, the same public served by the school district;

18 11. a. Dispose of personal or real property no longer needed
19 by the district by sale, exchange, lease, lease-
20 purchase, sale and partial lease back, or otherwise.
21 Real property shall be conveyed pursuant to a public
22 sale, public bid, or private sale; provided however,
23 unless otherwise prohibited by law, the board of
24 education of a consolidated or annexed school district

1 or any other school district may convey real property
2 to a local political subdivision or to an educational
3 institution within The Oklahoma State System of Higher
4 Education or to a housing authority formed pursuant to
5 the provisions of Section 1057 of Title 63 of the
6 Oklahoma Statutes, or any succeeding statute, without
7 consideration. Prior to the sale of any real
8 property, the board of education shall have the real
9 property appraised. The appraisal shall be
10 confidential until the real property is sold. When
11 the real property is sold, the board of education
12 shall make the appraisal available for public
13 inspection. Prior to the conveyance of any real
14 property by private sale, the board of education shall
15 have offered the real property for sale by public sale
16 or public bid. Any conveyance of real property by
17 private sale to a nonprofit organization, association,
18 or corporation to be used for public purposes, unless
19 for exchange, shall contain a reversionary clause
20 which returns the real property to the board of
21 education upon the cessation of the use without profit
22 or for public purposes by the purchaser or the assigns
23 of the purchaser,
24

1 b. If a board of education makes the decision to dispose
2 of real or personal property that is leased at the
3 time the decision is made, whether such disposal is by
4 public sale, public bid or private sale, the lessee
5 shall have a right of first refusal to purchase the
6 property on the following terms and conditions:

7 (1) if a board of education receives a bid or offer
8 in a public sale, public bid or private sale for
9 any real or personal property that it desires to
10 accept, then it shall provide notice to the
11 lessee of the property. The notice shall include
12 the identity of the prospective purchaser of the
13 property, the terms and conditions of the
14 proposed sale and the purchase price to be paid
15 by the prospective purchaser, and

16 (2) the lessee shall have thirty (30) days after
17 receipt of the notice to inform the board of
18 education that it elects to purchase the property
19 on the same terms and conditions set forth in the
20 notice, in which event the board of education
21 shall convey the property to the lessee on all
22 the same terms and conditions set forth in the
23 notice; provided, however, that if any portion of
24 the consideration included in the purchase price

1 set forth in the notice is not in cash, then the
2 lessee shall be entitled to pay the fair market
3 value in cash of such noncash consideration;

4 12. Purchase necessary property, equipment, furniture and
5 supplies necessary to maintain and operate an adequate school
6 system;

7 13. Incur all expenses, within the limitations provided for by
8 law, necessary to perform all powers granted by the provisions of
9 this section;

10 14. Contract with and fix the duties and compensation of
11 physicians, dentists, optometrists, nurses, attorneys,
12 ~~superintendents,~~ principals, teachers, bus drivers, janitors and
13 other necessary employees of the district;

14 15. Establish a written policy for reimbursement of necessary
15 travel expenses of employees and members of the board. The policy
16 may include in-district travel from the site of employment
17 assignment which is necessary in the performance of employment
18 duties. The written policy shall specify procedures, contain
19 documentation requirements, and may include payment of meal expenses
20 during authorized travel on a per diem allowance basis rather than
21 itemized documentation;

22 16. Pay necessary travel expenses and other related expenses of
23 prospective employees for sponsored visits to the school district
24 pursuant to a written policy specifying procedures containing

1 documentation requirements equal to or greater than the requirements
2 specified by law for state employees in the State Travel
3 Reimbursement Act;

4 17. Provide for employees' leaves of absence without pay;

5 18. Exercise sole control over all the schools and property of
6 the district, subject to other provisions of the Oklahoma School
7 Code;

8 19. Allow district-owned school buses to be used for
9 transportation of students from other districts or educational
10 institutions while within the district on educational tours. This
11 shall not restrict the authority of the board to authorize any other
12 use of such buses which may now be permitted by law or rule of the
13 State Board of Education;

14 20. Enter into contractual agreements with the board of
15 trustees of a multicounty library system, as defined in Section 4-
16 103 of Title 65 of the Oklahoma Statutes, or any succeeding statute,
17 a city-county library commission, as defined in Section 152 of Title
18 65 of the Oklahoma Statutes, or any succeeding statute, or a rural
19 single county library system, as defined in Section 1-104 of Title
20 65 of the Oklahoma Statutes, or any succeeding statute, on such
21 terms as may be mutually agreed, except no district board of
22 education may enter into any agreement under which the library
23 services for the school would be provided at any site other than the
24

1 school site or which would result in library services that do not
2 meet accreditation standards as required by law or rule;

3 21. Perform all functions necessary to the administration of a
4 school district in Oklahoma as specified in the Oklahoma School
5 Code, and in addition thereto, those powers necessarily implied but
6 not delegated by law to any other agency or official;

7 22. Prepare and distribute at the expense of the school
8 district any and all material which has the purpose of informing the
9 public about district activities;

10 23. Solicit and accept any gift, grant, or donation of money or
11 property for the use of the school district. Any gift, grant, or
12 donation of money may be deposited in the general fund or building
13 fund of the school district; and

14 24. Pay necessary meal and lodging expenses of school district
15 students and sponsors involved in authorized school-sponsored
16 cocurricular activities. The board of education shall establish a
17 written policy for reimbursement of necessary meal and lodging
18 expenses of school district students and sponsors. The written
19 policy shall specify procedures, contain documentation requirements,
20 and designate the funds from which reimbursement may be made.
21 Reimbursement may be made from the General Fund.

22 B. The board of education of any school district may rent real
23 and personal property, if such items are necessary for the operation
24 of the school, and pay the rental charges for the usage during any

1 fiscal year, or portion thereof, out of appropriations made and
2 approved for current expense purposes during the fiscal year. Any
3 rental contract extending beyond June 30 of the fiscal year shall be
4 void unless it contains provisions for mutual ratification of
5 renewal pursuant to the conditions provided for in this subsection.
6 It is the intent of this subsection to authorize boards of education
7 to enter into lease contracts but not to incur any obligation
8 against the school district in excess of the income and revenue
9 provided for such purposes for the fiscal year in which the lease
10 contract is operative. Any lease or lease-purchase agreement
11 entered into by any board of education shall state the purchase
12 price of real or personal property so leased. The lease or lease-
13 purchase shall not be extended so as to cause payment of more than
14 the original purchase price of the real or personal property, plus
15 interest not to exceed the legal rate. When the purchase price plus
16 interest has been paid, the property shall belong to the lessee and
17 the lessor shall deliver a deed or bill of sale to the property to
18 the lessee. When any real or personal property has been leased or
19 rented during any fiscal year pursuant to the provisions of any
20 contract which permits continuance of the rental for the remainder
21 of the fiscal year, the renting or leasing of the property shall be
22 continued for the remainder of the fiscal year unless the board of
23 education renting or leasing the same certifies by proper resolution
24 entered in the minutes of the board of education that the

1 continuance of the rental is unnecessary and contrary to the public
2 interest. Any lease-purchase agreement entered into shall include
3 the right of a school district to acquire buildings, equipment or
4 other facilities or discrete components thereof or improve school
5 sites through a lease-purchase agreement. A school district may use
6 proceeds derived from the sale of bonds as authorized by Section 26
7 of Article X of the Oklahoma Constitution to make lease-purchase
8 payments, including interest, under a lease-purchase agreement. For
9 purposes of this subsection, the term "acquired" as used in Section
10 26 of Article X of the Oklahoma Constitution shall mean the
11 possession, control, or power to dispose of personal or real
12 property.

13 C. The boards of education of two or more school districts may
14 enter into cooperative agreements and maintain joint programs
15 including, but not limited to, courses of instruction for
16 handicapped children, courses of instruction in music and other
17 subjects, practical instruction for trades and vocations, practical
18 instruction in driver training courses, and health programs
19 including visual care by persons legally licensed for such purpose,
20 without favoritism as to either profession. The revenues necessary
21 to operate a joint program approved in cooperative agreements,
22 whether from federal, state or local sources, including the
23 individual contributions of participating school districts, shall be
24 deposited into a fund separate from all other appropriated funds.

1 The beginning fund balance each year, combined with all actual
2 revenues, including collected and estimated revenues, must be
3 appropriated before being expended. Purchase orders shall be issued
4 against available appropriations and, once goods or services have
5 been received, either payable or nonpayable warrants shall be issued
6 in payment of all purchase orders. The fund shall be reported as a
7 separate appropriated fund in all the financial reports of the
8 school district which is chosen by the other school districts to
9 keep the accounting records of the joint program.

10 D. The boards of education of two or more school districts may
11 enter into a mutual contract or separate contracts with a
12 ~~superintendent,~~ an administrator, or teacher, or with a person to
13 provide support services, to serve as ~~superintendent,~~ administrator,
14 or teacher, as appropriately qualified, or to provide support
15 services, for each contracting district upon such terms and
16 conditions as the parties may agree. Nothing in this section shall
17 be construed to authorize or require annexation or consolidation of
18 any school districts or the closing of any school site except
19 pursuant to law as set forth in Section 7-101 et seq. of this title
20 or any succeeding statutes.

21 E. Any school district may operate or maintain a school or
22 schools on any military reservation which is within the boundaries
23 of the school district or which is adjacent to the school district,
24 and provide the instruction in the school or schools to children of

1 personnel on the military reservation and, in doing so, shall
2 conform to all federal laws and requirements.

3 F. The board of education of each school district shall adopt
4 and maintain on file in the office of the superintendent of schools
5 appropriate personnel policy and sick leave guide. The guide shall
6 be made available to the public.

7 G. The board of education of any school district with an
8 average daily membership of thirty thousand (30,000) or more and all
9 or part of which school district is located in a county having more
10 than five hundred thousand (500,000) population according to the
11 latest Federal Decennial Census may contract with a public or
12 private nonsectarian entity for that entity to provide educational
13 and administrative services for the school district. The
14 educational services provided by a contracting entity may include
15 but are not limited to the delivery of instructional service in core
16 and noncore academic subjects to the students enrolled in the school
17 district at one or more school sites or parts of sites within the
18 district pursuant to the terms of an educational services contract.
19 All educational service providers and their employees and
20 representatives and all educational and administrative services
21 provided under an educational services contract shall be exempt from
22 all statutes and rules relating to schools, boards of education and
23 school districts to the same extent that a charter school is exempt
24 under the Oklahoma Charter Schools Act. For all purposes including

1 but not limited to attendance, funding from all sources and
2 accountability, all students who are provided services by a
3 contracting entity pursuant to an educational services contract
4 shall at all times be and remain students of the school district.

5 SECTION 10. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 5-108A of Title 70, unless there
7 is created a duplication in numbering, reads as follows:

8 Candidates who win election to the office of superintendent of
9 schools shall be recognized by the State Board of Education as
10 certified as an administrator as required by Section 1-116 of Title
11 70 of the Oklahoma Statutes or any succeeding statute. The
12 superintendent shall no longer be recognized by the State Board of
13 Education as certified under this section at the end of their tenure
14 in office.

15 SECTION 11. This act shall become effective July 1, 2025.

16 SECTION 12. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

20

21 60-1-11351 SW 01/16/25

22

23

24